

TENTATIVE RULINGS for LAW and MOTION

March 24, 2026

Pursuant to Yolo County Local Rules, the following tentative rulings will become the order of the court unless, by 4:00 p.m. on the court day before the hearing, a party requests a hearing and notifies other counsel of the hearing. To request a hearing, you must contact the clerk of the department where the hearing is to be held. Copies of the tentative rulings will be posted on Yolo Court's Website, at www.yolo.courts.ca.gov. If you are scheduled to appear and there is no tentative ruling in your case, you should appear as scheduled.

Telephone number for the clerk in Department Eleven	(530) 406-6843
Telephone number for the clerk in Department Fourteen	(530) 406-6800

TENTATIVE RULING

Case: **Capital One, N.A. v. Diaz**
 Case No. CV2025-2095

Hearing Date: **March 24, 2026** **Department Eleven** **9:00 a.m.**

Christina Melhouse of Huron Legal Group PC's unopposed motion to be relieved as counsel for defendant Lorena Diaz is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

If no hearing is requested, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a copy of the signed order on the client.** (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Caver v. Singh
Case No. CV2023-0050

Hearing Date: March 24, 2026 **Department Fourteen** **9:00 a.m.**

Russell A. Wyatt of Wyatt Law Corporation's unopposed motion to be relieved as counsel for plaintiff Carrlisa Caver is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rule 3.1362.) First, Mr. Wyatt did not file his declaration on Judicial Council form MC-052. (Cal. Rules of Court, rule 3.1362(c).) Second, Mr. Wyatt failed to lodge a proposed order with the Court on Judicial Council form MC-053. (Cal. Rules of Court, rule 3.1362(e).) Finally, Mr. Wyatt did not file a proof of service at least five court days before the hearing, showing that Ms. Caver was properly served with the moving papers. (Cal. Rules of Court, rules 3.1362(d), 3.1300(c); see also Code Civ. Proc., § 1005, subd. (b).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Davis Medical Venture LLC v. Gary et al.**
Case No. CV2025-2253

Hearing Date: **March 24, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, all of plaintiff Davis Medical Venture LLC's motions to compel further responses to discovery propounded on defendants Donna Gary and Dielji, Inc., are **CONTINUED to May 5, 2026**, at 9:00 a.m. in Department Eleven.

If the parties resolve this matter at mediation, plaintiff **SHALL** drop these motions from calendar at least **5 court days** prior to the hearing.

If the parties do not resolve this matter at mediation, defendants **SHALL** file and serve a motion for relief from waiver of objections at least **18 court days** prior to the May 5, 2026, hearing, which will be heard at the same time as plaintiff's motions to compel further responses.

Plaintiff is **DIRECTED** to file a declaration with the Court at the time it files its opposition to defendants' motion for relief from waiver of objections to advise which of the discovery responses in dispute would remain at issue if the Court grants the motion for relief from waiver of objections.

TENTATIVE RULING

Case: **J.G. Wentworth Originations, LLC v. Miller**
Case No. CV2026-0390

Hearing Date: **March 24, 2026** **Department Fourteen** **9:00 a.m.**

Petitioner J.G. Wentworth Originations, LLC's verified petition for approval for transfer of payment rights is **GRANTED**. (Ins. Code, § 10134 et seq.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Martinez v. Martinez**
 Case No. CV2025-3459

Hearing Date: **March 24, 2026** **Department Eleven** **9:00 a.m.**

Jesse Ortiz of Ortiz Law Group, PC's unopposed motion to be relieved as counsel for plaintiff Servando Martinez is **DENIED WITHOUT PREJUDICE**. (Cal. Rules of Court, rule 3.1362.) Mr. Ortiz did not timely serve all moving and supporting papers on the client and on all other parties who have appeared in the case. (Code Civ. Proc., §§ 1005, subd. (b), 1010.6, subd. (a)(3)(B); Cal. Rules of Court, rule 3.1362(d).)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Melendres v. Franklin et al.**
 Case No. CV2024-1463

Hearing Date: **March 24, 2026** **Department Eleven** **9:00 a.m.**

On the Court's own motion, defendant Benjamin's Transfer, Inc.'s motion to compel multiple physical examinations is **CONTINUED** to **April 21, 2026**, at 9:00 a.m. in Department Eleven.

By **April 1, 2026**, plaintiff Javier Melendres is **DIRECTED** to file with the Court his opposition to the motion to compel.

No other documents will be considered.

TENTATIVE RULING

Case: **Pantoja v. Staub et al.**
Case No. CV2025-0611

Hearing Date: **March 24, 2026** **Department Eleven** **9:00 a.m.**

Benjamin W. Scott, Esq. of Wells Call, A Professional Corporation's unopposed motion to be relieved as counsel for plaintiff Christina Marie Pantoja is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

If no hearing is requested, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a copy of the signed order on the client.** (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Perez v. Wyndham Destinations, Inc.**
 Case No. CV2021-0289

Hearing Date: **March 24, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Benjamin Perez’s motion requesting a jury trial is **DENIED AS MOOT**. Pursuant to the parties’ joint stipulation and order (filed March 2, 2026), plaintiff was granted relief from any waiver of trial by jury. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16.)

As the parties agreed that “[t]his action shall proceed as a jury trial, the parties are **DIRECTED TO APPEAR** to select a jury trial date and provide an updated time estimate.

TENTATIVE RULING

Case: **Ratinho v. The Regents of the University of California**
 Case No. CV2025-1389

Hearing Date: **March 24, 2026** **Department Eleven** **9:00 a.m.**

Dan R. Lyman of The Lyman Firm, APC's unopposed motion to be relieved as counsel for plaintiff Sergio Ratinho is **GRANTED**. (Cal. Rules of Court, rule 3.1362.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, **this tentative ruling is not effective until moving counsel files a proof of service with the Court showing service of a copy of the signed order on the client**. (Cal. Rules of Court, rule 3.1362(e).) No further order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: Vinzymes, Inc. v. Amplifye, Inc.
Case No. CV2025-2558

Hearing Date: March 24, 2026 **Department Fourteen** **9:00 a.m.**

The Court notes that defendant/cross-complainant Amplifye, Inc. (“cross-complainant”) failed to properly meet and confer “in person or by telephone, or by video conference” prior to filing this motion for judgment on the pleadings. (Code Civ. Proc., § 439; Levens Decl., ¶¶ 2, 3.) However, the Court may not deny a motion for judgment on the pleadings for failure to meet and confer. (Code Civ. Proc., § 439, subd. (a)(4); see *Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355.)

Cross-complainant’s request for judicial notice filed with its moving papers is **GRANTED**. (Evid. Code, §§ 452, subd. (d), 453.) Cross-complainant’s request for judicial notice filed with its reply is **DENIED**. (Evid. Code, §§ 452, 453.) The proffered documents are not relevant to the Court’s determination of this motion. (See *People v. Rowland* (1992) 4 Cal.4th 238, 268, fn. 6; see also *Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825; *People ex rel. Lockyer v. Shamrock Foods Co.* (2000) 24 Cal.4th 415, 422 [a precondition to the taking of judicial notice in either its mandatory or permissive form must be relevant to a material issue].)

Cross-complainant’s motion for judgment on the pleadings is **DENIED**. (Code Civ. Proc., § 438; see *Performance Plastering v. Richmond American Homes of California, Inc.* (2007) 153 Cal.App.4th 659, 665; *Allstate Ins. Co. v. Kim W.* (1984) 160 Cal.App.3d 326, 330-331; *Alameda County Waste Management Authority v. Waste Connections US, Inc.* (2021) 67 Cal.App.5th 1162, 1174-1175.) The Court finds that plaintiff/cross-defendant Vinzymes’ (“cross-defendant”) general denial in its answer to the cross-complaint is sufficient to put into issue all the allegations of the cross-complaint; and (2) paragraph 10 of cross-defendant’s answer, plead as an [inconsistent] affirmative defense, cannot serve as a judicial admission. (Code Civ. Proc., § 431.30, subd. (d); *Anaheim Mobile Estates, LLC v. State of California* (2025) 113 Cal.App.5th 602, 614; *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240; *People ex rel. Becerra v. Superior Court* (2018) 29 Cal.App.5th 486, 499; *Edger v. Foster* (1941) 48 Cal.App.2d 580, 583; Answer to cross-complaint, ¶¶ 1, 10.)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.